



Southeastern Pennsylvania
Transportation Authority

714 Market Street
Philadelphia, PA 19106-2385

(215) 574- 7318

Office of General Counsel

James F. Kilcur
G. Roger Bowers
Norman Hegge, Jr.
Eileen G. Katz
Judith B. Soken
Stanley J. Sinovitz
Philip E. Berens
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Joan A. Brown
Sharon Gurak
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November 27, 1989

Mr. Jerry Rich, Secretary
Pennsylvania Public Utility Commission
P.O. Box 3265
Harrisburg, PA 17120

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NOV 29 1989

SECRETARY'S OFFICE
Public Utility Commission

RE: Application of Southeastern Pennsylvania Transportation Authority to (1) alter the existing transit structure, owned by the City of Philadelphia and operated by Southeastern Pennsylvania Transportation Authority, which crosses above the line of railroad known as the Richmond Branch, owned by Consolidated Rail Corporation, which crosses (AAR 858 107A) above Kensington Avenue, in the City of Philadelphia; (2) to obtain an exemption from minimum vertical and side clearances set forth in 52 Pa. Code §33.121 and 33.122; and (3) allocation of costs.

P.U.C. DOCKET NO. A-108352

Dear Mr. Rich:

Enclosed please find an original and two (2) copies of a Petition for Extension of Time filed by Southeastern Pennsylvania Transportation Authority in the above-captioned matter.

A Certificate of Service, as required by the Rules of the Commission, is attached.

Very truly yours,

Eugene N. Cipriani
Eugene N. Cipriani
Assistant Deputy Counsel

ENC:lh
Encls.

DOCUMENT
FOLDER

ORIGINAL

BEFORE THE
PENNSYLVANIA PUBLIC UTILITY COMMISSION

IN RE:

Application of Southeastern Pennsylvania : Docket No. A-00108352
Transportation Authority to (1) alter the :
existing transit structure, owned by the :
City of Philadelphia and operated by :
Southeastern Pennsylvania Transportation :
Authority, which crosses above the line :
of railroad known as the Richmond Branch, :
owned by Consolidated Rail Corporation, :
which crosses (AAR 858 107A) above :
Kensington Avenue, in the City of :
Philadelphia; (2) to obtain an exemption :
from minimum vertical and side clearances :
set forth in 52 Pa. Code §33.121 and :
33.122 and (3) allocation of costs. :

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SECRETARY'S OFFICE
Public Utility Commission

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PETITION FOR EXTENSION OF TIME

Southeastern Pennsylvania Transportation Authority ("SEPTA"),
by its attorney, Eugene N. Cipriani, files this Petition requesting
that Your Honorable Commission grant an extension of time until
May 15, 1992 to complete the rehabilitation of the existing transit
structure, which is part of the Frankford Elevated Line. In support
of its Petition, SEPTA states as follows:

1. By Order adopted November 17, 1988 and entered November 22,
1988, SEPTA was ordered in paragraph 11:

"That the rehabilitation work be completed in a
manner satisfactory to this Commission on or before
June 30, 1990, and that on or before that date
Southeastern Pennsylvania Transportation Authority
report the date of actual completion of the work
and certify to this Commission that the work has
been completed satisfactorily in accordance with
the approved plan and this Order."

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FBI

2. Before the contract to reconstruct the bridge could be awarded, SEPTA was faced with shortages of capital funding and the entire Frankford Elevation Reconstruction Project had to be scaled down. A new contract was let on September 12, 1989 and work on the bridge began in October 1989. Due to the complexity of the project, the bridge work will not, to a certainty, be completed until May 15, 1992. This situation has made it impossible for SEPTA to meet the schedule for the completion of rehabilitation as set forth in the Commission's November 17, 1988 Order.

3. SEPTA reasonably anticipates that all rehabilitation work pertaining to this bridge will be completed on or before May 15, 1992.

4. SEPTA hereby requests that paragraph 11 of the Order adopted November 17, 1988 and entered November 22, 1988 be amended to read as follows:

"That the rehabilitation work be completed in a manner satisfactory to this Commission on or before May 15, 1992, and that on or before that date Southeastern Pennsylvania Transportation Authority report the date of actual completion of the work and certify to this Commission that the work has been completed satisfactorily in accordance with the approved plan and this Order."

5. All remaining paragraphs of the Commission's Order, entered November 22, 1988 shall remain in effect unless further notified by the Commission.

6. SEPTA avers that granting this petition will not prejudice any of the parties to this proceeding.

WHEREFORE, SEPTA respectfully requests Your Honorable Commission to modify paragraph 11 of the Order adopted on November 17, 1988 and entered on November 22, 1988 to establish a completion date for the rehabilitation work of the Frankford Elevated Line to May 15, 1992.

Respectfully submitted,

Date: November 27, 1989

Eugene N. Cipriani
Eugene N. Cipriani
Assistant Deputy Counsel
Attorney for
Southeastern Pennsylvania
Transportation Authority
714 Market Street
7th Floor
Philadelphia, PA 19106-2385
(215) 574-7318

BEFORE THE
PENNSYLVANIA PUBLIC UTILITY COMMISSION

IN RE:

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Philadelphia; (2) to obtain an exemption :
from minimum vertical and side clearances :
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33.122 and (3) allocation of costs. :

AFFIDAVIT

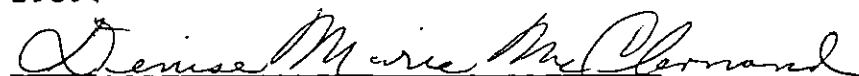
Michael J. Diana, being duly sworn according to law, deposes and says that he is the Senior Field Engineer of Southeastern Pennsylvania Transportation Authority; that he is authorized to and does make this affidavit for it; and that the facts set forth in the Petition above are true and correct to the best of his knowledge, information and belief, and he expects the said Southeastern Pennsylvania Transportation Authority to be able to prove the same at any hearing hereto.

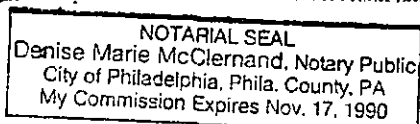

MICHAEL J. DIANA

Sworn and Subscribed Before

me this 22nd day of November,

1989.


Notary Public



BEFORE THE
PENNSYLVANIA PUBLIC UTILITY COMMISSION

IN RE:

Application of Southeastern Pennsylvania	:	Docket No. A-00108352
Transportation Authority to (1) alter the	:	
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set forth in 52 Pa. Code §33.121 and	:	
33.122 and (3) allocation of costs.	:	

CERTIFICATE OF SERVICE

I hereby certify that I have this day served a true copy of the foregoing Petition upon parties of record in this proceeding in accordance with the requirements of §1.54 (relating to service by a participant).

Consolidated Rail Corporation
c/o Charles E. Meecham, Esquire
1138 Six Penn Center Plaza
Philadelphia, PA 19103

Pennsylvania Department of Transportation
District 6-0
200 Radnor-Chester Road
St. Davids, PA 19087

Bell of Pennsylvania
One Parkway
Philadelphia, PA 19102

Gerald T. Clark
City of Philadelphia Law Department
1101 Market Street
5th Floor
Philadelphia, PA 19107

Philadelphia Gas Works
c/o Sydney M. Avent, Esquire
General Counsel
1800 North Ninth Street
Philadelphia, PA 19122

Rudolph Chillemi, Esquire
Philadelphia Electric Company
2301 Market Street
Philadelphia, PA 19101

Comcast Cablevision
c/o William Goetz
11400 Northeast Avenue
Philadelphia, PA 19116

Date: November 27, 1989

Eugene N. Cipriani
Eugene N. Cipriani
Assistant Deputy Counsel
Attorney for
Southeastern Pennsylvania
Transportation Authority
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